

Equivalent Citations

citation codes .

Vijay Bothra v. Union of India through SFIO

National Company Law Appellate Tribunal (May 9, 2023)

CASE NO.

IA - 1891/2023

JUDGES

- Mr. Peeush Pandey (Registrar)

ATTORNEY

- Gautam Bajaj

THE NATIONAL COMPANY LAW APPELLATE TRIBUNAL

PRINCIPAL BENCH, NEW DELHI

Interlocutory Application No.1891/2023 in

Un-numbered Company Appeal (AT) No.____/2023 (F.No.19.04.2023/NCLAT/UR/02659)

In the matter of:

[Vijay Bothra Appellant Vs.](#)

[Union of India](#), through Serious *Fraud* Investigation Office Respondent

Appearance: Gautam Bajaj, Advocate for the Appellant.

9th May, 2023

This is an application to extend the time granted for curing the defects.

2. The facts of the case are that the Appellant filed the Memo of Appeal on 11.04.2023 and the Office after scrutiny of the Memo of Appeal on 19.04.2023, intimated the defects to the Appellant on the same day and returned the Memo of Appeal to the Appellant on 20.04.2023. The Appellant re-filed the Memo of Appeal on 28.04.2023. It is stated in the Interlocutory Application (IA) that Registry raised objection with regard to

limitation as paid certified copy was filed. The Appellant had not left with any option but to file the Application seeking condonation of delay, even though there is no delay, which took some time. Hence, there is delay of 02 days, in re-filing the Memo of Appeal, so the same may be condoned.

3. Heard learned Counsel appearing for the Appellant and perused the averments made in the IA as well as Office report.

4. Considering the submissions made on behalf of the Appellant and for the reasons mentioned in the IA, which are sufficient, the delay in re-filing the Memo of Appeal is hereby condoned.

5. As prayed, list the case before the Hon'ble Bench under the heading 'for admission (fresh case)'.

6. With the aforesaid order, this IA stands disposed of.

(Peeush Pandey) Registrar